

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

MATHEW DURAN,

Plaintiff,

**SUMMONS TO THE
COMPLAINT**

-against-

THE CITY OF NEW YORK; P.O. ANTHONY MANETTA,
Shield # 24274; and P.O. JOHN/JANE DOES # 1-10, the
individual defendant(s) sued individually and in their official
capacities,

Index:

Basis of Venue: occurrence of
incident – 1820 E. 13th Street,
Brooklyn, New York

Defendants.

----- X

To the above named defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within twenty days after service of this summons exclusive of the day of service where service is made by delivery upon you personally within the state, or within thirty days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

MICHAEL O. HUESTON, ESQ.
ANDREW S. RENDEIRO, ESQ.
Attorneys for Plaintiff
16 Court Street, Suite 3301
Brooklyn, New York 11241
(718) 237-1900

By:


MICHAEL O. HUESTON, ESQ.

Defendants' addresses: THE CITY OF NEW YORK, 100 Church Street, New York, New York 10007; and P.O. ANTHONY MANETTA, Shield # 24274; and P.O. JOHN/JANE DOES # 1-10, 61st Precinct, 2575 Coney Island Ave, Brooklyn, NY 11223

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X

MATHEW DURAN,

Plaintiff, **COMPLAINT**

-against-

THE CITY OF NEW YORK; P.O. ANTHONY MANETTA,
Shield # 24274; and P.O. JOHN/JANE DOES # 1-10, the
individual defendant(s) sued individually and in their official
capacities,

Index:

Basis of Venue: occurrence of
incident – 1820 E. 13th Street,
Brooklyn, New York

Defendants.

Jury Trial Demanded

-----X

Plaintiff Mathew Duran, by and through his counsel, Andrew S. Rendeiro, Esq.
and Michael Hueston, Esq., upon information and belief, alleges as follows:

PRELIMINARY STATEMENT

1. This is a civil rights, common law, and tort action in which plaintiff seeks relief for the violation of plaintiff's rights secured by 42 U.S.C. § 1983; and the Fourth, Sixth, and Fourteenth Amendments to the United States Constitution; and the laws of the State of New York. Plaintiff's claims arise from an incident that arose on or about March 25, 2015. During the incident, the City of New York, and members of the New York City Police Department ("NYPD") subjected plaintiff to, among other things: unlawful search and seizure; false arrest; assault; battery; unreasonable force; failure to intervene; conspiracy; malicious prosecution; denial of a fair trial/fabricated evidence; and respondeat superior liability. Plaintiff seeks compensatory and punitive damages, declaratory relief, an award of costs and attorney's fees, pursuant 42 U.S.C. § 1988, and such other and further relief as the Court deems just and proper.

JURISDICTION & VENUE

2. Within 90 days of the incident alleged in this complaint, plaintiff served upon defendant City of New York a Notice of Claim setting forth the name and post office address of plaintiff, the nature of the claims, the time when, the place where and the manner in which the claims arose, and the items of damages or injuries claimed.

3. More than 30 days have elapsed since plaintiff's demands and/or claims were presented to defendant City of New York for adjustment and/or payment thereof, and the defendant has neglected and/or refused to make any adjustment and/or payment.

4. Plaintiff has satisfied all conditions precedent for the filing of this action, including appearing at a 50-hearing. This action is being commenced within one year and ninety days of the date of the occurrence herein.

5. Venue is proper in the Supreme Court of the State New York, Kings County, because the acts in question occurred in the State of New York, Kings County, and the City of New York is subject to personal jurisdiction in Supreme Court of the State New York, Kings County; and jurisdiction is proper because the Supreme Court of the State New York, Kings County has jurisdiction over plaintiff's state law causes of actions, and plaintiff's federal causes of action pursuant to 42 U.S.C. § 1983.

PARTIES

6. Plaintiff Mathew Duran is a resident of the State of New York, living at 247 South 3rd Street, Brooklyn, New York 11211.

7. At all times herein, defendant City of New York is a municipal corporation organized under the laws of the State of New York, which violated plaintiff's rights as described herein.

8. At all times relevant, defendant City of New York maintained a police department known as the NYPD, which employed the individual defendants.

9. At all times alleged herein, defendants P.O. Anthony Manetta, Shield # 24274, and Police Officers John/Jane Does # 1-10 were employed as police officers with 61st Precinct, located in Kings County, New York, or other as yet unknown NYPD assignment, who violated plaintiff's rights as described herein.

10. The individual defendants are sued in their individual and official capacities.

STATEMENT OF FACTS

The Incident

11. On March 25, 2015, several police officers operating from the 61st Precinct located in Kings County, New York, including upon information and belief, the individual defendants Detective Anthony Manetta, Shield # 24274, and Police Officers John/Jane Does # 1-10 ("the police"), at times acting in concert and at times acting independently, committed the following illegal acts against plaintiff.

12. On March 25, 2015 at approximately 6:25 a.m., at and in the vicinity of 1820 E. 13th Street, Apt. 3M, Brooklyn, New York, the police without either consent, an arrest warrant, a lawful search warrant, probable cause, or reasonable suspicion that plaintiff (or any third person) had committed a crime unlawfully arrested plaintiff.

13. The police acted in concert in committing the above-described illegal acts against plaintiff.

14. The police entered 1820 E. 13th Street, Apt. 3M, Brooklyn, New York with firearms drawn.

15. 1820 E. 13th Street, Apt. 3M, Brooklyn, New York is a one bedroom apartment.
16. Upon information and belief, the police were looking for the resident of the apartment, L.G.
17. Plaintiff was not a tenant in the apartment.
18. Plaintiff had stayed as overnight guest in the apartment for a job interview during the day.
19. Plaintiff had slept in the living room.
20. L.G. had slept in his bedroom.
21. There were no weapons, contraband, or controlled substances in any common area with plaintiff, including the living room where plaintiff had slept.
22. Once the police entered 1820 E. 13th Street, Apt. 3M, Brooklyn, New York, plaintiff was not free to disregard the defendants' questions, walk away or leave the scene.
23. The police pointed firearms at plaintiff.
24. The police threw plaintiff on the floor.
25. The police threw plaintiff against a wall.
26. The police yanked plaintiff arms back and placed excessively tight handcuffs on plaintiff.
27. The police repeatedly struck plaintiff with a baton on the back of his neck.
28. The police told plaintiff to keep his mouth shut.
29. The police were abusive and rude.
30. The police found no basis to arrest to plaintiff.

31. Nevertheless, the police transported plaintiff to the 61st Precinct for arrest processing.

32. The police transported plaintiff to Brooklyn Central Booking for arraignment.

33. Upon information and belief, in order to cover up their illegal actions, the police, pursuant to a conspiracy, initiated by false sworn complaint(s) and/or conversations, falsely and maliciously told the Kings County District Attorney's Office that plaintiff had committed various crimes, and the District Attorney prosecuted plaintiff for various charges, including criminal possession of a controlled substance.

34. The police also falsely stated in police reports that controlled substances and paraphernalia were recovered in plain view on a coffee table in the living room. These allegations were false.

35. The police also falsely stated they observed plaintiff act in concert with L.G. regarding possessing controlled substances and paraphernalia. This allegation was also false.

36. The police had observed plaintiff sleeping in a living room that had no controlled substances and paraphernalia in it.

37. At arraignment bail was set.

38. Plaintiff was released shortly thereafter once his bail was posted.

39. Plaintiff testified at the grand jury regarding the defendant police officers' false allegations.

40. The grand jury credited plaintiff's version of events and rejected the police officer's false story.

41. As a result, all criminal charges against plaintiff were dismissed, and the criminal case against plaintiff terminated in plaintiff's favor.

42. Plaintiff was humiliated and embarrassed by the experience.

43. Plaintiff suffered physical injuries to wrists, knees, arms, and neck.

44. Plaintiff suffered a post arraignment restraint on his liberty.

45. Plaintiff suffered financial loss, including attorney's fees and bail.

General Allegations

46. Plaintiff did not resist arrest at any time during the above-described incidents.

47. Plaintiff did not violate any law, regulation, or administrative code; commit any criminal act; or act in a suspicious or unlawful manner prior to or during the above-described incident.

48. The individual defendants did not observe plaintiff violate any law, regulation, or administrative code; commit any criminal act; or act in a suspicious or unlawful manner prior to or during the above-described incident.

49. The individual defendants acted under pretense and color of state law and their individual and official capacities and within the scope of their employment. Said acts by said defendants were beyond the scope of their jurisdiction, without authority or law, and in abuse of their powers, and said defendants acted willfully, knowingly, and with the specific intent to deprive plaintiff of his rights.

50. As a direct and proximate result of defendants' actions, plaintiff experienced personal and physical injuries, pain and suffering, fear, an invasion of privacy,

psychological pain, emotional distress, mental anguish, embarrassment, humiliation, and financial loss.

51. Plaintiff is entitled to receive punitive damages from the individual defendants because the individual defendants' actions were motivated by extreme recklessness and indifference to plaintiff rights.

FIRST CLAIM

(UNLAWFUL SEARCH AND SEIZURE UNDER FEDERAL LAW)

52. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

53. Defendants unlawfully searched and seized plaintiff without a lawful warrant, cause, consent, and/or beyond the scope of any warrant.

54. Accordingly, defendants are liable to plaintiff for unlawful search and seizure under 42 U.S.C. § 1983; and the Fourth and Fifth Amendments to the United States Constitution.

SECOND CLAIM

(UNLAWFUL SEARCH AND SEIZURE UNDER STATE LAW)

55. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

56. Defendants unlawfully searched and seized plaintiff without a lawful warrant, cause, consent, and/or beyond the scope of any warrant.

57. Accordingly, defendants are liable to plaintiff for unlawful search and seizure under New York State law.

THIRD CLAIM

(FALSE ARREST UNDER FEDERAL LAW)

58. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

59. Defendants falsely arrested plaintiff without consent, an arrest warrant, probable cause, or reasonable suspicion that plaintiff had committed a crime.

60. Accordingly, defendants are liable to plaintiff for false arrest under 42 U.S.C. § 1983; and the Fourth Amendment to the United States Constitution.

FOURTH CLAIM

(FALSE ARREST UNDER STATE LAW)

61. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

62. Defendants falsely arrested plaintiff without consent, an arrest warrant, probable cause, or reasonable suspicion that plaintiff had committed a crime.

63. Accordingly, defendants are liable to plaintiff for false arrest under New York State law.

FIFTH CLAIM

(UNREASONABLE FORCE)

64. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

65. The individual defendants' use of force upon plaintiff was objectively unreasonable.

66. The individual defendant officers did not have an objective and/or reasonable basis to use any degree of force against plaintiff.

67. Those defendants who did not touch plaintiff, witnessed these acts, but failed to intervene and protect plaintiff from this conduct.

68. Accordingly, the defendants are liable to plaintiff for using unreasonable force, pursuant to 42 U.S.C. § 1983; and the Fourth Amendment to the United States Constitution.

SIXTH CLAIM

(ASSAULT)

69. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

70. Among other things as described above, individual defendants' battery, false arrest, and unreasonable use of force against plaintiff placed him in fear of imminent harmful and offensive physical contacts.

71. Accordingly, defendants are liable to plaintiff under New York State law for assault.

SEVENTH CLAIM

(BATTERY)

72. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

73. Among other things as described above, the individual defendants' false arrest, and use of force against plaintiff were illegal physical contacts.

74. Accordingly, defendants are liable to plaintiff under New York State law for battery.

EIGHTH CLAIM

(FAILURE TO INTERVENE)

75. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

76. Defendants had a reasonable opportunity to prevent the violations of plaintiff's constitutional rights, but they failed to intervene.

77. Accordingly, the defendants are liable to plaintiff for failing to intervene to prevent the violation of plaintiff's constitutional rights under 42 U.S.C. § 1983; and the Fourth Amendment to the United States Constitution.

NINTH CLAIM

(CONSPIRACY)

78. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

79. Defendants are liable to plaintiff because they agreed to act in concert to inflict an unconstitutional injury; and committed an overt act done in furtherance of that goal causing damage to plaintiff under 42 U.S.C. § 1983.

TENTH CLAIM

(MALICIOUS PROSECUTION FEDERAL LAW)

80. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

81. The individual defendants are liable to plaintiff for malicious prosecution because, pursuant to a conspiracy and acting with malice, the defendants initiated a malicious prosecution(s) against plaintiff by knowingly, intentionally, and maliciously providing false statements in complaints and police reports to police officers, prosecutors and/or the court(s), which alleged plaintiff had committed various crimes.

82. The individual defendants lacked probable cause to believe the above-stated malicious prosecution could succeed.

83. The individual defendants initiated the above-stated malicious prosecution to cover up their illegal and unconstitutional conduct.

84. The above-stated malicious prosecution caused a sufficient post-arraignment liberty restraint on plaintiff.

ELEVENTH CLAIM

(MALICIOUS PROSECUTION STATE LAW)

85. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

86. The individual defendants are liable to plaintiff for malicious prosecution because, pursuant to a conspiracy and acting with malice, the defendants initiated a malicious prosecution(s) against plaintiff by knowingly, intentionally, and maliciously providing false statements in complaints and police reports to police officers, prosecutors and/or the court(s), which alleged plaintiff had committed various crimes.

87. The individual defendants lacked probable cause to believe the above-stated malicious prosecution could succeed.

88. The individual defendants initiated the above-stated malicious prosecution to cover up their illegal and unconstitutional conduct.

TWELFTH CLAIM

(DENIAL OF A FAIR TRIAL/FABRICATION OF EVIDENCE)

89. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

90. The individual defendants are liable to plaintiff because they intentionally conspired to fabricate evidence against plaintiff, including omitting and/or manipulating evidence, and suppressing exculpatory evidence and forwarded that false evidence to police officers, prosecutors, and the court.

91. The individual defendants violated the law by either testifying falsely, providing false information, and/or drafting and signing false criminal court complaints and/or false police reports and forwarding them to police officers, prosecutors and the court.

92. The individual defendants were on notice that creating fabricated evidence is a clear violation of law because it is well established that individuals who knowingly use false evidence to obtain a conviction act unconstitutionally, depriving plaintiff of liberty without due process of law or a fair trial, and the harm occasioned by such unconscionable actions are redressable in an action for damages under 42 U.S.C. § 1983, the Fair Trial Clause of the Sixth Amendment to the United States Constitution, and the Due Process Clause of the Fourteenth Amendment to the United States Constitution.

THIRTEENTH CLAIM

(RESPONDEAT SUPERIOR)

93. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

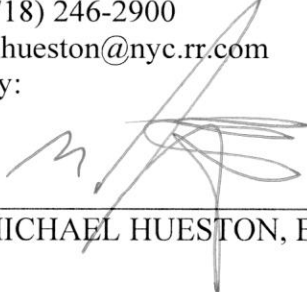
94. The individual defendants were acting within the scope of their employment when they committed the above described acts against plaintiff, including falsely arresting, assaulting, and battering plaintiff.

95. The City of New York is therefore vicariously liable under New York State law for the aforesaid torts.

WHEREFORE, plaintiff demands a jury trial and the following relief jointly and severally against the defendants; and demands judgment and compensatory damages, individually and/or collectively in an amount that exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction as to the above-stated cause of action against all defendants; punitive damages in an amount to be determined at trial as and for the above-stated causes of action against the individual defendants; together with costs and disbursements of this action and legal fees pursuant to 42 U.S.C. § 1988.

DATED: Brooklyn, New York
June 17, 2016

MICHAEL O. HUESTON, ESQ.
Attorney for Plaintiff
16 Court Street, Suite 3301
Brooklyn, New York 11241
(718) 246-2900
mhueston@nyc.rr.com
By:



MICHAEL HUESTON, ESQ.

Andrew S. Rendeiro, Esq.
Attorney for Plaintiff
16 Court Street, Suite 3301
Brooklyn, New York 11241

VERIFICATION

I, Mathew Duran, state under the oath, that I am the deponent in this action, and that I have read the Verified Complaint and that it is true to the knowledge of the deponent, except as to matters, alleged on information and belief, and that as to those matters I believe it to be true.



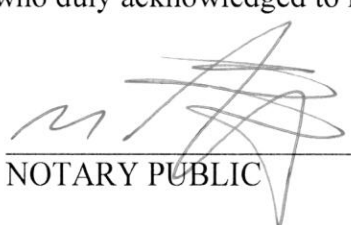
Mathew Duran

STATE OF NEW YORK)

: ss:

COUNTY OF KINGS)

On the 17th day of June, 2016, before me personally came and appeared MATHEW DURAN to me known and known to me to be the individual described in and who executed the foregoing instrument, and who duly acknowledged to me that he executed the same.


NOTARY PUBLIC

MICHAEL HUESTON
NOTARY PUBLIC, State of New York
No. 02HU6073803
Qualified in Kings County
Commission Expires April 22, 2018

Index No.

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

MATHEW DURAN,

Plaintiff,

-against-

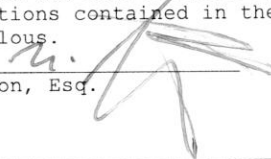
CITY OF NEW YORK, et al.,

Defendants.

SUMMONS AND COMPLAINT

MICHAEL HUESTON, ESQ.
Attorney for Plaintiff
16 Court St., Suite 3301
Brooklyn, New York 11241
(718) 246-2900

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney duly admitted to practice law in the State of New York, certifies that, upon information and belief based upon reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: 6/17/2016 Signature: 
Michael Hueston, Esq.

*Due and timely, service is hereby
admitted.*

Brooklyn, New York....., 2016

....., Esq.

Attorney for.....